

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN INDONESIA

Complete Community Opposition How-To

This is a practical manual for farmers, adat (customary) communities, fishers, and citizens' networks who wake up to find that a karst mountain, a forest, a rice-growing plain, a coast, or a river they depend on has been opened to something destructive — a cement plant and limestone quarry, a mine, a coal or nickel operation, a palm-oil plantation, a dam, a coastal reclamation. It explains how Indonesia's approval system for large projects actually works, where the real openings are, what to document, how to organise, and how to use the levers Indonesian law and Indonesia's own history of community resistance provide. It does not promise that any project can be stopped. It offers a clear-eyed method that gives you the best possible chance.

INTRODUCTION & FRAMEWORK

Why This Matters

Across Indonesia, communities discover that a place they live from — a karst range that stores their water, a customary forest their ancestors managed, a plain of rice paddies, a bay their fishers work — has been licensed to a company, often through decisions taken in the provincial or national capital and without the people on the land being genuinely consulted. The first sign is often the survey teams and stakes in the fields, the announcement of an environmental assessment few can read, the heavy machinery arriving, or the quiet news that an environmental approval and a business licence have been granted to a company most in the affected village had never heard of.

Indonesia's situation is, in one crucial respect, hopeful. This is a country of intense extractive and industrial pressure — nickel, coal, bauxite, gold, cement, palm oil, dams, reclamation — but it is also a country whose farmers and adat communities have, more than once, forced the state and the courts to listen. The single most important fact for any Indonesian community to hold onto is this: **in Indonesia, a group of farmers took a state-owned cement company all the way to the Supreme Court and won — the court found the environmental assessment unlawful and ordered the permit revoked.** That is not a slogan. It is the record of Kendeng, and it is the ground this guide stands on.

The struggle that teaches both truths a community must hold at once is the fight of the Kendeng farmers in Central Java. When the state-owned cement producer PT Semen Indonesia planned an 850-hectare plant and limestone quarrying in the Kendeng karst mountains — the range that feeds the springs and rice fields of Rembang, Pati, and the surrounding districts — the farmers, many of them from the Samin community with its long tradition of peaceful resistance, organised as the People's Network for the Kendeng Mountains (JMPPK). With the environmental group WALHI and the Semarang Legal Aid Institute, they sued in the administrative court over the environmental permit. When the courts first went against them, the women of Kendeng travelled to Jakarta and, in an image that became iconic across Indonesia, set their feet in blocks of hardening cement in front of the presidential palace — the "Kartinis of Kendeng." And in October 2016, the Supreme Court, on judicial review, ruled in their favour: it held that the environmental impact assessment approved by the governor was flawed — it failed to show how the mining would protect the water basin, and it had not properly taken the community's views into account — and it ordered the environmental permit revoked. President Joko Widodo ordered a strategic environmental study of the Kendeng mountains. Farmers had beaten a state company in the highest court. That is real power, and it is Indonesian. The detail is worth holding onto. The farmers had organised as the People's Network for the Kendeng Mountains as far back as 2006, drawing in villagers from Rembang, Pati, Grobogan, and beyond, because they understood that a karst range is not a barren wasteland but a living sponge that stores the water their rice depends on. Their lawsuit turned on that hydrology — the claim that quarrying the karst would wreck the water basin, a point the assessment had glossed over. When the ruling was won and then circumvented, hundreds of farmers walked some 135 kilometres from Kendeng to the governor's office in Semarang to demand it be honoured. The struggle cost them dearly, including the life of a farmer, Patmi, who died during the protests in Jakarta — a reminder that these fights are waged by ordinary people at real risk.

The second truth is sobering. **Winning in court did not, by itself, save the mountain.** After the Supreme Court ruling, the provincial governor revoked the old permit but then issued a new environmental permit for the same project, an act the community saw as circumventing the court. The struggle continued through blockades and long protest marches; one Kendeng farmer, Patmi, died during the protests in Jakarta. Indonesia shows both what a determined community and Indonesia's courts can achieve — an unlawful assessment struck down, a state company stopped in its tracks, a president

forced to act — and how hard it is to convert a court victory into protection on the ground when officials re-issue permits and the project's backers push on.

Underneath both truths is the framework this guide will help you use: **Indonesia is a democracy whose Constitution guarantees the right to a good and healthy environment; it has an environmental law with an impact-assessment and approval system and real openings for public participation; administrative courts that can annul a government permit, a Supreme Court that can review them, and a Constitutional Court that has recognised the forest rights of adat communities; an environmental movement and legal-aid network with deep experience; a public-information law; and a free press.** Protest, litigation, and petition are lawful. That combination is what this guide is about.

The Strategic Framework

The core idea is simple: **a destructive project is not a single event but a chain of decisions and dependencies, and a chain can be broken at its weakest link.** A large project in Indonesia needs an environmental impact assessment (AMDAL) and an environmental approval; it needs the business and sectoral licences that flow from that approval; on forest land it may run into the rights of adat communities recognised by the Constitutional Court; on farmland and in water-catchment areas it collides with laws protecting food land and water; it must survive the administrative courts and, above them, the Supreme Court; and it must avoid the scrutiny of a free press and a watchful public. Each is a potential point of leverage.

Two constitutional anchors underlie everything that follows. The Constitution guarantees, in Article 28H, that every person has the right to a good and healthy environment, placing environmental protection within the framework of human rights; and it provides, in Article 33, that the earth, the water, and the natural riches they contain are controlled by the state and are to be used for the greatest welfare of the people. That second clause cuts both ways — it has been invoked to justify state control of resources, but it also grounds the argument that resources must serve the people who live from them, not merely the companies that would extract them.

Your task is to find the link you can reach. Sometimes it is the AMDAL and a defect in it — a water study that was never done, a community that was never genuinely consulted, exactly the flaws that sank the permit at Kendeng. Sometimes it is the customary-forest rights the Constitutional Court has affirmed. Sometimes it is the protection of a karst water-catchment or of productive farmland. Sometimes it is the administrative court, which can annul the permit outright. And often it is the press and public attention, and the pressure on a company's investors, that a project cannot escape.

Critical Caveat: Which Situation Are You In?

Throughout this guide you will find honest assessments, because a guide that promised any project can be stopped by the right petition would be lying to you.

Where a project's environmental assessment has a real defect, or it sits on adat forest or a protected water-catchment, and you can organise and reach the courts and the press, Indonesia's levers are genuine.

Kendeng is the proof that a flawed AMDAL can be struck down and a state company stopped; the Constitutional Court's customary-forest ruling is the proof that adat rights can be affirmed against the state.

Where the government and powerful investors back the project, where officials will re-issue a permit to defeat a court order, and where activists face criminalisation, the outright stop is hard, and resistance can carry real personal risk. The re-issued Kendeng permit, the weakening of the assessment rules, and the dangers protesters have faced are the warning. There the levers still matter, but you must weigh the odds honestly and think in terms of an annulled permit, delay, a project bogged down, safeguards, and exposure as much as an outright stop.

Much of this guide is designed to help you judge which situation you are in.

How to use this guide

Read the whole thing once before acting. Read the legal, organising, and tilted-system sections with particular care, because in Indonesia the environmental assessment and its public participation, the customary-forest rights, the administrative courts, and the press are the sharpest levers, and the government's stance shapes everything. Two principles run throughout. First, **use the participation and the rights the law gives you:** the AMDAL's public-involvement requirement, the adat community's recognised forest rights, the protection of water and farmland — these are real, and much of your work is insisting they be honoured. Second, **combine the strands:** documentation, the assessment challenge, the courts, the press, and public attention work far better together than any one alone — exactly as the Kendeng movement combined them.

HOW THE SYSTEM WORKS

To break the chain you must understand it. This section explains the levels of decision, the journey a project takes from assessment to construction, how to follow the money behind it, and who is supposed to be watching.

The Levels of Decision

Decisions about large projects in Indonesia are made at several levels, and the level determines where you push.

National level. The central government — above all the Ministry of Environment and Forestry — sets the framework and, for the largest or cross-boundary projects, issues the environmental approval; it also controls forest-area designation and grants many resource concessions. National laws — the Law on Environmental Protection and Management, the Forestry Law, and the sweeping Job Creation (Omnibus) Law that amended them — set the rules the whole system follows.

Provincial level. The provincial governor and administration have long held key powers over environmental permits and approvals for projects within the province, over spatial planning, and over the practical conduct of assessment and enforcement. In the Kendeng case it was the governor's environmental permit that the Supreme Court ordered revoked — and the governor who then re-issued one. The province is often where the decisive administrative act is taken. This has a practical consequence for strategy: because the environmental approval and much of the spatial planning are decided at the provincial level, the governor and the provincial administration are frequently both the target of your legal challenge and the audience for your public pressure — the official whose signature you are contesting and the politician who must weigh the cost of ignoring an organised region.

Regency/municipal and village level. The regent or mayor and the local administration handle much local licensing, spatial planning, and land matters, and the **village** and the **adat community** are where the harm lands and where recognition of customary rights begins. For an adat community, the recognition of its customary forest — affirmed in principle by the Constitutional Court but delivered through local regulations and ministerial determination — is the foundation of its strongest legal claim. That two-step reality matters in practice: the Constitutional Court established the principle that adat forest is not state forest, but a particular community turns that principle into an enforceable right only when the regency or province formally recognises the community and the responsible ministry determines the customary forest. The gap between the principle and its delivery has been wide and slow, which is an honest limit; but it also means that beginning the recognition process early, before a concession is granted, can be one of the most consequential steps an adat community takes.

The point: match your effort to the level that holds the decision you are trying to affect. The environmental approval is often provincial or national; spatial planning and local licences are regency-level; and the adat community's rights are recognised through local and national processes together.

A Project's Journey — and Where It Can Be Stopped

A large project typically moves through recognisable stages. Each is a potential intervention point.

1. Spatial planning and location. Whether an area is zoned for industry, mining, or plantation — and whether that zoning respects protected karst, water-catchment, farmland, or adat territory — is set in regional spatial plans.

Intervention point: a project that does not fit the spatial plan, or that sits in a protected water-catchment or on protected farmland, is vulnerable from the start.

2. The environmental impact assessment (AMDAL). For a significant project the proponent must prepare an AMDAL — the assessment, the environmental-management and monitoring plans — which is evaluated and forms the basis of the environmental approval. *Intervention point:* the AMDAL's quality and honesty, and the reality of the public involvement it must include — the very ground on which the Kendeng permit fell.

2a. What the AMDAL actually contains. An AMDAL is not a single document but a set: the terms of reference that scope the study, the main analysis of environmental impacts, and the environmental-management and monitoring plans that are supposed to bind the project once it operates. Each part is a place a defect can hide — a scope that leaves out the water basin, an analysis that understates the harm, management plans that promise what the project will not deliver.

3. The environmental approval and business licence. Under the current system the assessment leads to an **environmental approval** that is folded into the project's business licensing. *Intervention point:* whether the approval was lawfully granted on a sound assessment — an approval resting on a defective AMDAL can be annulled by the administrative court. It is worth knowing how this stage was reshaped by the 2020 Job Creation (Omnibus) Law. That law abolished the standalone environmental permit that used to be required before a business could operate, folding it into an

integrated environmental approval within a risk-based licensing system; and it replaced the independent assessment commission that had reviewed AMDALs with a government-appointed environmental-feasibility team. The stated aim was to speed investment; the effect that most concerns communities is a system with fewer independent checks and, as set out below, narrower public participation. Knowing this tells you where the new weak points and the new openings lie.

4. Sectoral permits and land. Mining, forestry, plantation, and water-use permits, and the acquisition or release of land, follow. *Intervention point:* forest-area release over adat forest, water permits in a fragile catchment, and land acquisition without genuine consent are all contestable.

5. Construction and operation. The plant is built, the quarry opened, the water drawn. *Intervention point:* whether the project complies with its approval and management plan — a documented violation is leverage, and non-compliance can trigger administrative sanctions.

The chain has many links. Your job is to find the one nearest to hand.

Follow the Money and the Permissions

Behind every project is a structure of ownership, finance, and permission you can map — and mapping it tells you where the pressure points are.

Who is the proponent, and who owns it? Some of Indonesia's largest projects are run by state-owned enterprises — the Kendeng cement plant belonged to a state company — while others are subsidiaries of domestic conglomerates or foreign multinationals. Company records, the project's own AMDAL, and stock-exchange disclosures reveal who is behind it. A state company answers to the government and to public opinion; a listed or foreign-owned company answers to investors.

What permissions does it need, and which does it lack? Map the environmental approval, the sectoral permits, the forest-area release, the spatial-plan conformity, and the land. The permission the project still needs — an approval not yet granted, a forest release pending, land not yet secured — is where it is most vulnerable.

Who is financing it? Trace the banks and investors. A project financed by public banks, by international lenders, or by listed investors is exposed to their standards and their reputational concerns, and international development financiers carry their own accountability mechanisms. Following the money reveals further points of leverage.

Who Is Supposed to Be Watching

Several institutions exist to check power, and each is a potential ally or venue.

The Ministry of Environment and Forestry and the provincial environment agencies evaluate assessments, issue approvals, and are meant to monitor compliance — and can be pressed, formally and publicly, to do so.

The administrative courts (PTUN) exist to test whether a government decision — an environmental permit, a licence — was lawful, and can annul it; above them the Supreme Court reviews, as it did at Kendeng.

The Constitutional Court guards the Constitution and has recognised the customary-forest rights of adat communities.

The environmental movement and legal-aid institutes — national organisations with decades of litigation and campaigning experience — are often your fastest route to expertise and national attention.

The free press has repeatedly carried community struggles from a remote village to the national and international stage.

The anti-corruption commission, the state audit body, and the information commission each guard a different flank — graft in permitting and concessions, the handling of public money and resources, and the right to information — and each is a venue to which a well-documented community case can be taken.

No single one of these is a guarantee. Together they are the architecture of accountability this guide teaches you to use.

QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns from how Indonesian and comparable campaigns tend to go, not a controlled study. The decisive variables are whether the environmental assessment has a real defect, whether the project sits on adat forest or a protected water-catchment or farmland, whether you can reach the courts and the press, and how firmly the government and its investors back the

project. Where the assessment is defective or protected land is involved and the world is watching, Indonesia's levers are real; where the government champions the project and officials will re-issue permits to defeat a court, discount the figures and think in terms of an annulled permit, delay, safeguards, and exposure.

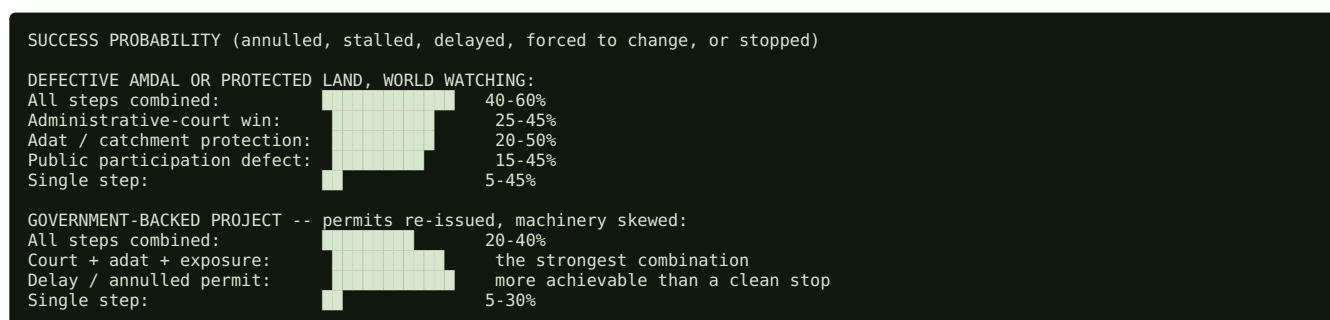
Individual Step Success Rates

Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Public participation in the AMDAL	15-35%	during review	low	On record; conditions or a redo
Asserting adat / customary-forest rights	25-50%	12-48 months	low-moderate	Concession blocked; project stalled
Administrative court (PTUN) challenge	25-45%	12-36 months	moderate	Permit annulled or reviewed; delay
Protecting a water-catchment / farmland / karst	20-45%	6-30 months	low-moderate	Zoning or protection enforced; project barred
Public-information requests exposing defects	15-35%	1-12 months	low	Record obtained; defect proven; leverage
Documenting a legal violation (permit-condition breach)	25-45%	3-18 months	low	Breach exposed; sanctions; leverage
Mass, connected public mobilisation	25-45%	6-36 months	low	Political cost; a project reconsidered
All steps combined (defective AMDAL or protected land, world watching)	40-60%	12-36 months	low-moderate	Annulled, stalled, delayed, or forced to change
All steps combined (government-backed, permits re-issued)	20-40%	12-48 months	low-moderate	Delayed, annulled then re-fought, conditioned; rarely a clean stop

Key insight: all steps together beat any single one, and Indonesia's real strengths are unusual — an **environmental-assessment system** with a public-participation requirement whose breach can void a permit; a body of **adat / customary-forest rights** affirmed by the Constitutional Court; **administrative courts** that can annul a government permit and a **Supreme Court** that reviews them; protections for **water-catchments, karst, and productive farmland**; a **public-information law**; and an **experienced environmental and legal-aid movement** with a **free press**. Its constraints are a **state and economy geared to extraction**, a **2020 Omnibus Law that narrowed participation and simplified permitting**, officials who will **re-issue a permit to defeat a court order**, slow delivery of **adat-forest recognition**, and real **risk to those who resist**.

A note on cost: participating, documenting, and organising are inexpensive, and national environmental groups and legal-aid institutes have carried community cases to the highest courts — WALHI and the Semarang Legal Aid Institute litigated Kendeng alongside the farmers. The expenditure that most changes outcomes is committed legal support and the reach of a sustained public campaign — both of which the Kendeng movement marshalled.

Effectiveness Visualization



How to read this honestly. The levers that most change outcomes in Indonesia are **the administrative courts and the assessment's defects**, reinforced by adat rights, water-and-farmland protection, and public attention. Kendeng shows the ceiling: a flawed AMDAL struck down by the Supreme Court, a state company halted, a president forced to act.

It also shows the floor: a governor who re-issued a permit to circumvent the ruling, and a struggle that had to continue. Most Indonesian fights sit between them, and the honest lesson is that Indonesia's courts and rights are real and have delivered wins — but against a government-backed project the realistic win is often a permit annulled and re-fought, delay, safeguards, and exposure as much as a clean, permanent stop.

Step Importance Ranking (When All Combined)

1. **The administrative-court challenge to a defective permit** — where the AMDAL is flawed or the public participation was hollow, the PTUN can annul the permit, and the Supreme Court can uphold that on review, as at Kendeng. This is Indonesia's sharpest legal lever.
2. **Adat and land-based rights** — customary-forest rights affirmed by the Constitutional Court, and the protection of water-catchments, karst, and productive farmland, which can put land off-limits.
3. **Documentation of the assessment's defects and any violations** — the record, much of it obtainable through public-information requests, that grounds every other step.
4. **Public participation in the AMDAL** — the formal involvement right that puts your case on the legal record and whose breach is itself a defect.
5. **Public mobilisation and the press** — the further fronts that raise the political cost, reach investors, and protect the campaign.

What Indonesian Campaigns Actually Show

A few patterns recur. **A defective assessment can be struck down** — at Kendeng, the Supreme Court in 2016 found the environmental impact assessment flawed for failing to protect the water basin and to consider the community, and ordered the permit revoked, halting a state company's cement plant. **Adat rights are real and constitutional** — the Constitutional Court's 2012 ruling that customary forests are not state forests gave indigenous communities a powerful claim against concessions over their land. **Peaceful mass action reaches the nation** — the women of Kendeng setting their feet in cement at the palace became an image that moved the country and forced the president to act. **But a court win is not the end** — the governor re-issued a permit to circumvent the ruling, and the struggle went on. **And the ground has shifted** — the 2020 Omnibus Law narrowed public participation in the AMDAL and simplified permitting, and activists have faced criminalisation and real danger. The through-line: **challenge a defective assessment in the administrative courts, assert adat and land-based rights, extract the record and document every defect, mobilise the press and the public — and expect a fight measured in annulled and re-fought permits, delay, safeguards, and exposure as much as a clean stop, while knowing that in Indonesia farmers have beaten a state company in the highest court.**

STEP 1: TARGET IDENTIFICATION

Before you can fight a project, you must understand it precisely. Vague opposition to "the project" is weak; a specific challenge to a specific decision is strong. This step turns alarm into a target.

The Five Core Questions

Answer these five questions, in writing, as fully as you can. They convert a threat into a plan.

1. **What exactly is the project, and who is behind it?** Name the project, the proponent company, its owners and parent, and — if you can find it — the financiers. Is it a cement plant and quarry, a mine, a plantation, a dam, a reclamation? A state-owned enterprise, a domestic conglomerate, a foreign multinational? The precise identity determines which levers apply — a state company is exposed to national politics; a listed or foreign one to investors; a project on adat land opens customary rights.
2. **Where exactly is it, and what protected features and rights does it touch?** Get the boundaries and overlay them on what you know: Is it on or above a karst water-catchment that feeds springs and rice fields, as at Kendeng? On customary (adat) forest? On protected or productive farmland? In a coastal or conservation zone? Does it conform to the regional spatial plan? This overlay is the single most important thing you can produce, because Indonesia's strongest levers — the water-catchment and farmland protections, the adat-forest rights, the spatial plan — are triggered by exactly these features.
3. **What stage is it at, and what decision is imminent?** Has the AMDAL been prepared, announced, or evaluated? Has the environmental approval been granted? Are the sectoral permits and the forest release pending? Is construction

beginning? Identify the next decision and its date, because the openings — the AMDAL's public involvement, the window to challenge a permit — are time-bound.

4. What does it need next that it does not yet have? Every project depends on permissions it has not all secured — an environmental approval not yet granted, a forest release pending, land not yet acquired, a permit vulnerable to challenge. The permission it still needs is where it is most vulnerable. A project awaiting its approval or its land is far more contestable than one already built and running.

5. Who else is affected, and who already opposes it? List the affected villages, the farmers and fishers, the adat community, the downstream water users, and any local leaders, organisations, or legal-aid groups already concerned. You are almost never alone, and Indonesia has a dense network of environmental and legal-aid organisations. Knowing who shares the stake tells you who your coalition can be.

A Worked Example

Consider a community of rice farmers who learn that a cement plant and a limestone quarry have been proposed on the karst range above their fields — the range whose springs water their paddies.

Applying the five questions: **What and who** — a named cement company, perhaps state-owned, holds the plan; the community traces its ownership and any financing. **Where** — the quarry sits on a karst water-catchment that feeds the springs and the rice fields, and may overlap adat territory; the overlay shows a direct threat to the water the whole community farms with. **Stage** — the AMDAL has been evaluated and the environmental permit granted, but the community was never genuinely consulted, and the assessment barely addressed the water basin. **What it needs next** — a lawful permit resting on a sound assessment, which this is not. **Who else** — dozens of farming households, neighbouring villages, an environmental group, and a legal-aid institute that has fought karst-and-water cases before.

From those answers a strategy writes itself: **the project's decisive weakness is a defective assessment over a water-catchment the community depends on** — exactly the Kendeng pattern — reinforced by any adat claim and the failure to consult. The community's first moves are to obtain the AMDAL and the permit, to document the assessment's silence on the water basin and the hollow consultation, to establish any customary and water-catchment protections, and to bring in the environmental group and the legal-aid institute to prepare an administrative-court challenge. That is a far stronger position than generalized objection — and it is the position from which the Kendeng farmers won.

STEP 2: DOCUMENTATION

Documentation is the foundation of everything that follows. A community that can prove what is happening — with dates, records, photographs, and official documents — is a community that can act. One that only has fears and rumours cannot. This step builds your evidentiary base in three layers.

Layer 1: The Official Record

The first layer is the paper the project itself generates and the state holds. This is what makes a challenge credible, because it is the government's and the company's own record used against the decision.

Assemble, as far as you can obtain them: the **AMDAL** — the impact assessment, the environmental-management and monitoring plans; the record of the **public involvement** the assessment must include; the **environmental approval** (and, for older projects, the environmental permit) and its conditions; the **sectoral permits** — mining, plantation, forestry, water — and any **forest-area release**; the **spatial-planning** documents that show what the area is zoned for; and any **land-acquisition** record. Get these in their most official form, dated and complete, and note who issued each and when, because the identity of the issuing authority and the date fix both where a challenge must be aimed and the clock within which it must be brought. Much of this you can seek under the **Public Information Openness Law**, which gives citizens a right to information held by public bodies. The AMDAL and the public-involvement record deserve special attention: if the assessment failed to study the water basin, or if the consultation did not genuinely reach the affected community, those are defects at the heart of the approval — precisely the defects the Supreme Court found at Kendeng.

Layer 2: The Physical and Environmental Reality

The second layer is the ground truth — what is actually happening and what is actually at stake, recorded in a way that will stand up.

Photograph and film the site and the activity, recording the date and location of every image: the survey stakes, the cleared land, the quarry face, the machinery, the springs and streams, the affected fields. Map the project against what it threatens — the karst catchment, the springs, the rice fields, the forest, the adat territory, the coast. Record the environmental baseline while you still can: the flow of the springs, the state of the water, the standing crops, so that later damage can be shown against a documented starting point. In karst country especially, the link between the range above and the water below is the heart of the matter, and simple, dated evidence of the springs and their flow is powerful. Because the decisive legal question in a karst case is so often whether the project will damage the water basin, evidence about the water is worth gathering with special care: which springs feed which fields, how the flow changes with the seasons, how many households and hectares depend on each source, and what the community already knows about where the water comes from underground. A karst specialist or hydrologist can turn that local knowledge into the technical case that an assessment ignoring the water basin is fatally incomplete — the argument that won Kendeng. This is the evidence that turns "we are worried" into "here is what is being destroyed, and here is where the law forbids it."

Layer 3: The Human Impact

The third layer is the community's own record, and in Indonesia — where farming and fishing livelihoods are inseparable from land and water — it is powerful.

Collect statements from the affected households: who they are, what land, water, forest, and fisheries they depend on, what they stand to lose, and how they will be displaced or impoverished. Record the community's relationship to the land and to any adat institutions and sacred sites, because customary rights and the community's own decision-making carry weight. Document the conduct of the AMDAL's public involvement and of any consultation — whether people were genuinely informed and heard, or presented with a decision already made. Record the losses: lost water, lost harvests, lost commons, damaged health. These human records do two things: they are evidence of harm for the courts and the assessment process, and they are the material of a media and mobilisation campaign that can reach the provincial capital, Jakarta, and the world — as the Kendeng farmers' story did.

Keep everything organised, backed up, and dated. A shared, secured archive — copies in more than one place — protects your work and lets your allies and lawyers use it.

WHAT TO GATHER, AND WHERE TO FIND IT

This section is a practical checklist: the specific records that matter, and where in the Indonesian system to look for them. Not all will be available for every project, but knowing what to ask for — and being seen to ask precisely — is itself a source of strength.

The AMDAL and its management plans. From the environment ministry or the provincial environment agency and the company: the impact assessment and the environmental-management and monitoring plans. Read them for what they study and what they omit — above all water, karst hydrology, cumulative impacts, and the affected community.

The public-involvement record. From the assessment file: the record of how the community was announced to and involved. Compare it against reality — was the affected community genuinely reached and heard, or was the involvement a formality? A hollow public involvement is a defect in the approval, as Kendeng showed.

The environmental approval and its conditions. From the environment ministry or province: the approval (or permit) and every condition attached. The conditions matter twice — as evidence of the risks the authority itself recognised, and because their breach is a violation you can act on.

The sectoral permits and forest release. From the mining, plantation, forestry, and water authorities: the permits the project relies on, and any release of forest area. Whether a forest-area release runs over adat forest is a central question after the Constitutional Court's ruling.

The spatial plan. From the regional planning authority: what the area is zoned for, and whether the project conforms — or whether it sits in a protected karst, water-catchment, or farmland zone where it does not belong.

The land record. From the land agency and local administration: how land was acquired or released and on what terms, and whether consent was genuine.

Ownership, finance, and violations. From company records, stock-exchange disclosures, and any inspection or monitoring reports: who owns and finances the project, and any documented non-compliance.

Using the Public Information Openness Law. The public-information law gives any citizen the right to seek

information held by public bodies, subject to defined exceptions, with a duty to respond within a set period. Frame precise requests to the environment ministry, the province, and the planning and land authorities for the AMDAL, the public-involvement record, the approval and its conditions, the sectoral permits, and the spatial plan. The request itself both gathers evidence and puts officials on notice that the community is organised and watching; a refusal can be challenged through the information commission.

The act of assembling this record changes how you are treated. A community that arrives with the AMDAL, the public-involvement record, the approval conditions, the spatial plan, and a map of its water and rights is a community that officials, courts, and the press take seriously.

STEP 3: BUILDING LOCAL OPPOSITION

Documentation gives you a case; organising gives you power. In Indonesia, where farmer and adat movements have repeatedly changed the fate of projects, a well-built coalition is your engine. This step builds it in four phases.

Phase 1: The Core Group

Start with a small, committed core — the households most directly affected, the farmers and elders who know the land and water, and a few trusted, energetic organisers. This group does the early work: the documentation, the information requests, the mapping of allies. Keep it tight enough to move quickly and decide clearly, and make sure it includes people with standing — respected farmers, adat leaders, village figures — whose word carries weight locally. In Indonesia the credibility of the affected community itself, especially a farming or adat community defending its water and land, is your greatest asset; the core group exists to organise around it, not to substitute for it.

Phase 2: Broadening the Base

From the core, widen to the full circle of the affected: the surrounding villages, the downstream water users, the neighbouring farming and fishing communities, and the local associations. Hold meetings where people can see the evidence and understand the stake — the map of the project over the water-catchment and the fields, the AMDAL, the approval conditions. Give people a clear, honest account of what is proposed, what it threatens, and what the community can lawfully do. The aim is a broad, informed base that can speak with one voice in the assessment process, in the courts, in the press, and to the authorities. Breadth matters: a fight that visibly involves many villages and a whole farming region is far harder to dismiss than one attributed to a few — the Kendeng movement drew farmers from several districts.

Phase 3: Allies and Expertise

Indonesia's decisive advantage for organised communities is its dense network of environmental organisations, legal-aid institutes, and adat and farmer movements. Reach out to them early. National environmental groups have fought cement, mining, and plantation cases and know the AMDAL system, the courts, and the press. Legal-aid institutes can carry a case to the administrative court and the Supreme Court, as they did at Kendeng. Adat-rights organisations can help a community establish and defend its customary-forest rights after the Constitutional Court's ruling. Hydrologists, karst specialists, and other experts can supply the technical critique of an AMDAL that turns objection into evidence. National and international networks can amplify the case and reach a company's investors. Bring them in as partners, share your documentation, and let their experience shape your strategy. It helps to understand the ecosystem you are joining. Indonesia has a national environmental-advocacy organisation with branches across the archipelago, a national alliance of indigenous peoples that has carried adat rights to the Constitutional Court, mining-advocacy and forest networks that track concessions and their impacts, and legal-aid institutes in the major cities that litigate for communities without charge. Around them sit university researchers, karst and hydrology specialists, and investigative journalists. A small community's fight, plugged into this ecosystem early, gains lawyers, scientists, national reach, and the solidarity of movements far beyond the affected villages — much as the Kendeng farmers gained when a national environmental group and a legal-aid institute took up their case.

Phase 4: Structure and Sustainability

A fight against a large project is long — often measured in years, and rarely over even after a court win. Build a structure that can last: clear roles, a shared and secure archive, a way to make decisions, a means to keep the wider community informed, and a plan for the emotional, financial, and legal toll. Decide early how you will handle pressure and risk — because activists in Indonesia have faced criminalisation and real danger, and the Kendeng struggle itself saw a farmer die

during the protests; a community should go in with its eyes open, its solidarity firm, and legal support on hand. Sustainability is itself a form of power: officials may re-issue a permit to outlast a court order, and a coalition that endures is one that can keep fighting through the re-issued permit, the appeal, and the attempts to divide it.

A Worked Coalition Example

Return to the rice-farming community below the karst. Their core group — a handful of affected households and respected farmers — gathers the AMDAL, the approval, and a map of the quarry over the water-catchment, much of it obtained through information requests. They broaden the base by holding village meetings across the affected districts, where every household sees that the project threatens the springs that water their fields; neighbouring villages join. They bring in an environmental group and a legal-aid institute that recognise a Kendeng-type case at once, supply a hydrologist's critique of the assessment, and prepare an administrative-court challenge. They build a durable structure — a documentation lead, a spokesperson, a legal liaison, a secure archive — designed to outlast a re-issued permit. Within months the community has moved from scattered worried villages to an organised coalition with expert allies, a legal theory, and a clear demand: annul a permit built on a false assessment, and protect the water. That is the position from which the Kendeng farmers won.

STEP 4: LEGAL CHALLENGES

Law is one of Indonesia's real levers, because its administrative courts can annul an unlawful government permit and its Constitutional Court has affirmed the rights of adat communities. This section explains the routes, honestly, including their limits.

The Administrative Courts

The most important legal fact for an Indonesian community fighting a project is that a government decision — an environmental permit or approval, a licence — can be challenged in the **administrative court (Pengadilan Tata Usaha Negara, or PTUN)**, which can annul it if it was issued unlawfully. From the administrative court a case can go on appeal to the high administrative court and, ultimately, to the **Supreme Court (Mahkamah Agung)** on cassation and judicial review. This is exactly the route the Kendeng farmers took: they challenged the governor's environmental permit in the administrative court, and on judicial review in 2016 the Supreme Court held the underlying assessment unlawful — it had failed to show how the mining would protect the water basin and had not taken the community's views into account — and ordered the permit revoked. The lesson is precise: **where an environmental permit rests on a defective assessment or a hollow public involvement, the administrative courts can strike it down, and that is often a community's sharpest legal weapon.** Note that challenges to administrative decisions run to strict time limits, so early documentation and legal contact are essential.

Adat and Customary-Forest Rights

Indonesia's most distinctive rights-based lever grows from the Constitutional Court's landmark **2012 ruling on customary forests**. The Court held that customary forests (hutan adat) lie within the territory of customary-law communities and are **not state forests** — cutting away the legal basis on which the state had granted concessions over land that adat communities had managed for generations. For an adat community, this means that establishing recognition of its customary forest — a process that runs through local regulations recognising the community and a ministerial determination of the forest — converts a moral claim into a legal one that a concession must overcome. The recognition process is slow and incomplete in practice, and that is an honest limit; but where a community can establish its adat-forest rights, it holds a powerful, constitutionally grounded claim against a project on its land.

The Constitutional Backdrop and the Wider Environmental Law

Behind the specific routes stands the Constitution, which guarantees the right to a good and healthy environment as part of the rights of every person, and treats the nation's land, water, and natural riches as controlled by the state for the people's greatest welfare. The Law on Environmental Protection and Management builds on this with tools a community and its allies can use: strict liability for environmental damage, administrative sanctions for violations, and — importantly — **legal standing for environmental organisations** and mechanisms for citizen and class-action suits, which is why national environmental groups can litigate on a community's behalf. These are the doctrines an advocate invokes to argue that a project approved without a genuine assessment, or operating in violation, breaches both the law and a constitutional right. The environmental law also carries a strict-liability standard for certain environmental damage —

meaning a polluter can be liable without proof of fault — and it opens the courthouse door beyond the immediately affected: recognised environmental organisations may sue in the environmental interest, and citizens may bring class or representative actions. For a community, this means you need not fight alone or only in your own name; a national organisation with standing can carry the environmental claim alongside your local one, widening both the legal footing and the public reach of the case. Two further points are worth knowing. First, the adat-forest ruling did concrete legal work: the Constitutional Court struck the words "state forest" from the Forestry Law's definition of customary forest, so that adat forest is now treated as rights-forest belonging to the community rather than land the state may freely concession — a change won by the national indigenous-peoples' alliance that brought the case. Second, the Job Creation Law itself did not go unchallenged: in 2021 the Constitutional Court found it flawed in its making and ordered it revised, after which the government re-enacted it. The lesson for a community is that even sweeping national laws are contestable, and that the environmental movement's constitutional challenges are part of the same fight as your local one.

The Honest Limits

Be clear-eyed. The courts are real levers, but litigation is uncertain and slow, and a court victory can be undercut. The Kendeng story is the essential caution: the farmers won in the Supreme Court, and yet the governor revoked the old permit only to issue a new one, forcing the struggle to continue. Adat-forest recognition, though constitutionally affirmed, has been delivered slowly and partially. And the wider legal ground shifted with the 2020 Omnibus Law, which narrowed public participation in the AMDAL and folded the environmental permit into a simplified, risk-based licensing system — changes that, whatever their intent, reduced some of the openings communities had relied on. So use the legal routes — they are among your sharpest levers, and Indonesia's have produced real wins — but pair them with adat and land-based rights, the press, and mobilisation, and be ready to keep fighting after a win, measuring success in permits annulled and re-fought, delay, safeguards, and exposure as well as a clean stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence does not speak for itself. To move an official, a court, or the public, you must turn what you have gathered into clear, specific arguments aimed at the right decision. This section shows how.

From a document to a legal defect. Do not simply hand over the AMDAL; identify what is wrong with it. If the assessment failed to study how the project would affect the water basin, the argument is: *the assessment omitted a central impact and cannot lawfully support the approval* — the very finding that revoked the Kendeng permit. If the public involvement did not genuinely reach the community, the argument is: *the participation the law requires was not real, and the approval built on it is defective*. Tie every defect to the specific requirement it breaches.

From your rights to a precondition. The record of your customary forest becomes: *this is adat forest, not state forest, under the Constitutional Court's ruling, and it cannot be handed to a concession over our community's rights*. The overlay on a water-catchment or protected farmland becomes: *this project sits where the spatial plan and the water and food-land protections forbid it*. Each of these arguments has the same shape: it converts something the community knows — this is our forest, this is our water, this is our rice land — into a specific legal claim tied to a rule the project breaks, so that the decision-maker faces not a plea but a defect they are bound to answer.

From photographs to a documented violation. Dated, located images of quarrying, clearing, or pollution in breach of the approval's conditions become: *here is proof that the project is operating in violation, at this place, on this date — and here is the sanction the law requires*.

From testimony to harm. The households' statements become: *this project takes the water and land these named families farm and live from, in violation of their right to a good and healthy environment*.

From finance to leverage. The ownership and financing record becomes: *this project is run by a company answerable to the government or to its investors, whose reputation this fight touches*.

Match the argument to the venue. To the environment authority, argue the assessment's defects and demand the approval be refused or the assessment redone. To the administrative court, argue the permit's unlawfulness within the time limit. To the press and the public, argue the human story — the springs that will die, the fields that will go dry, the farmers who were never truly asked. The same evidence, aimed differently, does different work.

STEP 5: MEDIA STRATEGY

In Indonesia, publicity is power. The country has a large, free, and combative press, an intensely engaged public, and a history in which national and international attention has changed the fate of projects. For a state-owned, listed, or foreign-owned project, coverage reaches the government, investors, and parent companies. This step turns your evidence and your story into pressure.

Why Media Matters Here

Kendeng became a national cause — the karst mountains, the farmers, and above all the women who set their feet in cement at the palace — and that attention forced the president to order a study and made the fight impossible to ignore. Publicity does three things: it raises the political cost of a harmful decision, it reaches the investors and officials who care about reputation, and it protects the campaigners themselves, because a watched community is harder to intimidate.

Building the Story

Lead with the human and the concrete, not the technical. The story is not "the environmental permit rested on a deficient AMDAL"; it is "the mountain that gives us our water, the springs that feed our rice, are to be quarried away for cement, and we were never truly asked." Use your strongest material: the dated photographs of the springs and the quarry, the map of the project over the water-catchment, the testimony of named farmers, the fact — where it applies — that a court has already found the assessment unlawful or that the land is adat forest. Keep the facts scrupulously accurate; your credibility is your armour.

Reaching the Audiences

Work several audiences at once. **Local and national press** in Indonesian carry the story to the provincial capital and Jakarta, where political pressure builds. **Environmental and adat networks** amplify and lend authority. **International media and networks** matter especially for listed or foreign-owned projects, because they reach investors and the global public. **Social and independent digital media** let the community speak in its own voice and document in real time. Provide ready material — clear photographs with captions, short accurate summaries, a map, and a few compelling testimonies — so that journalists and allies can carry your story faithfully. For a project backed by a state enterprise, the audience that matters most may be the national government and the public whose company it is; for a listed or foreign-owned project, it is the investors, lenders, and international buyers who are sensitive to reputational and environmental risk. An accurately told story of a water source destroyed and a community ignored can travel from a village in Central Java to a shareholders' meeting or an ethical-investment screen abroad — a reach a purely local protest cannot achieve, and one that has repeatedly changed how a company behaves.

Discipline and Care

Two cautions. First, accuracy above all: one exaggeration handed to the other side can be used to discredit everything. Second, care for people's safety: activists in Indonesia have faced criminalisation and real danger, so weigh what you publish, protect vulnerable individuals, and let the community decide together what it is willing to say publicly. Used with discipline, the press is among the most powerful and protective levers an Indonesian community has. And it compounds over time: each accurate story builds a record and a reputation that make the next story easier to place and harder to dismiss, so that a community which has told its story truthfully and consistently becomes a source journalists return to, rather than a one-day headline.

EMAILS & LETTERS

Below are eight templates for the written communications a campaign most often needs. Adapt them to your facts; keep them precise, calm, and specific; and keep copies of everything you send.

8A — Public-information request for the AMDAL and public-involvement record (to the environment ministry / provincial environment agency). *Subject: Request under the Public Information Openness Law — AMDAL and public-involvement record for [project].* "Under the Public Information Openness Law, we, residents of [village], request copies of the AMDAL, the environmental-management and monitoring plans, the record of the public involvement, and the environmental approval and its conditions for [project], [location]. As affected residents we are entitled to this information. Please provide it within the period the law allows, or state the legal ground for any exemption. [Contact.]"

8B — Public-information request for the permits and spatial plan (to the province / planning authority). *Subject: Request for permits and spatial-plan documents — [project].* "Under the Public Information Openness Law, we

request the sectoral permits and any forest-area release relied on by [project], and the regional spatial-plan documents showing the zoning of [location], including any water-catchment, karst, or farmland protection. [Contact.]"

8C — Objection during the AMDAL public involvement (to the assessment authority). *Subject: Objection to the environmental assessment for [project].* "We, residents of [village], object to the approval of the AMDAL for [project] on the following grounds: [the assessment fails to show how the project will protect the water basin / springs]; [the public involvement did not genuinely reach the affected community]; [the project sits on adat forest / a protected water-catchment / farmland]. We ask that approval be refused or a proper assessment with genuine involvement be required. [Attach evidence.]"

8D — Demand to protect a water-catchment / adat forest (to the province and environment ministry). *Subject: Protection of [karst catchment / adat forest] threatened by [project].* "The area of [project] lies on [the water-catchment that feeds our springs and rice fields / our customary forest]. We call on you to honour the protection the spatial plan and the water and forest laws provide, and — where our customary forest is concerned — the Constitutional Court's ruling that adat forest is not state forest, and to refuse or revoke the approval accordingly. [Attach map and evidence.]"

8E — Notice of intent to challenge in the administrative court (to the issuing authority). *Subject: Objection to and intended challenge of the environmental permit for [project].* "We consider the environmental permit/approval granted to [project] on [date] unlawful, because [it rests on an assessment that failed to protect the water basin / the public involvement was not genuine / it disregards protected land or adat rights]. We ask that it be reviewed and revoked. Failing that, we intend to bring the matter before the administrative court within the time the law allows. [Attach evidence.]"

8F — Letter to an environmental group or legal-aid institute seeking partnership. *Subject: Request for support — [project] at [location].* "Our community faces [project] on [our water-catchment / adat forest / farmland]. We have gathered [the AMDAL, the approval, the spatial plan, photographs, testimonies] and believe an administrative-court challenge and [adat / water-catchment protection] apply. We ask for your legal and technical support and help raising the case, and we are ready to work as partners. [Contact and summary of evidence.]"

8G — Letter to the press (national or international). *Subject: [Community] moves to protect [mountain / springs / forest] from [project].* "For generations, the farmers of [village] have watered their rice from the springs of [karst range] and lived from [forest/land]. Now [project], by [company], threatens to [quarry the mountain / dry the springs / clear the forest] — and our community was never truly asked. We can provide photographs, documents, a map, and interviews. [Contact.]"

8H — Community/adat statement recording the decision. *Subject: Statement of the community of [village] on [project], [date].* "We, the community of [village], having considered [project] affecting our water, land, and — where applicable — our customary forest, declare our opposition to it and our demand that any permit resting on a false assessment be revoked and our water and rights protected. This statement is made freely and together. [Attendance / signatures.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not every community has months and a lawyer at the outset. If you must act fast and lean, do these things, in this order, and you will have done the most important work.

1. Pin down the project and its footprint. Get the proponent, the type, and the boundaries. Overlay it, even roughly, on the water-catchment, the springs, the fields, the forest, the adat territory. If it threatens your water or sits on adat forest, you may already have your strongest lever.

2. Request the record. Send public-information requests for the AMDAL, the public-involvement record, the environmental approval and conditions, and the spatial plan (8A/8B). The requests gather your evidence and put officials on notice.

3. Photograph and record everything, with dates and locations. The site, the clearing, the quarry, the springs, the affected fields. Dated evidence costs nothing and matters most — and baseline images of the springs before damage are especially powerful.

4. Use the public involvement, and object formally. If the AMDAL's public involvement is open, take part and object in writing (8C); if the community has a customary or collective decision to make, record it (8H). These are formal acts, not mere protest.

5. Watch the challenge clock and get a lawyer. A permit can be challenged in the administrative court, but only within a time limit. Contact an environmental group or legal-aid institute (8F, 8E) at once — the window is easily lost, and they can move faster than you can alone.

6. Raise the alarm and find your movement. Alert the press (8G) and reach out to an environmental or adat organisation. Indonesia's movements have fought cement, mining, and plantation fights and know the way.

Even with little time, these six steps create a record, exercise your formal rights, protect the challenge window, and build a coalition — the things every later step is built on.

A final word on the rapid-fire path: in Indonesia, where a win can be undone, the most valuable early move of all is building a coalition that will still be standing after the first court ruling. A single well-documented water map, a single public-information request, a single call to a legal-aid institute, and a united community are worth more than an elaborate plan drafted after the permit is granted and the challenge window has closed. Speed and solidarity protect your options.

WHEN THE SYSTEM IS TILTED

Much of this guide assumes the ordinary machinery works: assessments are honest, participation is real, courts decide, and their decisions are obeyed. Often in Indonesia they are not. This section is about acting when the system is tilted against you.

The Characteristic Indonesian Problem: Wins That Are Undone

Indonesia's defining difficulty is captured by Kendeng itself: the farmers won in the Supreme Court, and yet the governor issued a fresh permit to keep the project alive. The lesson is not that the courts are worthless — they are real, and they win — but that **a court victory is a beginning, not an end, and you must be ready to enforce it and to fight the re-issued permit.** Plan for it. Keep the coalition intact after a win; be ready to challenge a new permit as unlawful in its turn; document the circumvention; and make the defiance of the court public. A community that expects the fight to continue past the first victory is a community that cannot be worn down by an official's signature on a new piece of paper.

When the Rules Themselves Are Weakened

A second form of tilt is the weakening of the protections. The 2020 Omnibus Law narrowed the public participation required in the AMDAL — limiting it toward those "directly affected" and dropping the explicit role of environmental advocates — and folded the environmental permit into a simplified, risk-based licensing system. When the rules are weakened, the fight shifts partly to the national and public arena: work with the environmental movement that has challenged these changes, raise the alarm in the press, and use whatever participation and challenge rights remain to their fullest. The narrowing of a right is itself a reason to exercise it loudly and on the record. What remains of the AMDAL's public involvement is still a formal stage at which objections become part of the legal record; using it fully, in writing and with the whole affected community, both preserves the point for a later court challenge and makes plain that the participation, however narrowed, was demanded and given.

When Officials Will Not Act

Where officials grant a defective permit or ignore a legitimate objection, escalate methodically. Put every objection and request in writing, so that the failure is documented — the public-information law is invaluable here. Take a defective permit to the **administrative court** within the time limit, and, where a law or a right is at stake, support the environmental movement's challenges before the **Constitutional Court**. Where adat forest is disregarded, pursue the recognition the Constitutional Court's ruling makes possible and make any denial public. And make the failure visible: an official who ignores a quiet letter may act when the defiance is national news and the movements are watching.

When to Reassess

Be honest with your community about the odds. Against a government-backed project whose backers will re-issue permits and outlast a court, a clean permanent stop may not be achievable, and it is not a failure to say so. In that situation the realistic and still-valuable wins are a permit annulled and the project delayed and made costlier, protections for the water and the land secured, safeguards and compensation won, and exposure that raises the price of the harm. Choose the fight you can win, protect your people — especially given the real risks — and keep the record, because officials, governments, and courts change, and a well-documented campaign is ready when they do. A project delayed for years by a determined

community is a project whose economics can sour, whose investors can lose patience, and whose backers can move on — so that even where the law does not deliver a clean stop, endurance itself can become the decisive lever.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Sometimes the tilt is not mere inertia but corruption — a permit that should never have issued, an assessment written to order, an official with an interest in the outcome, a concession steered to a favoured company. Mining, plantations, and large infrastructure are chronically exposed to it. This section is about recognising and confronting capture, carefully.

Recognising the Signs

Corruption rarely announces itself, but there are patterns. A permit granted despite a plainly inadequate assessment; a public involvement engineered to exclude the affected; an AMDAL that reads as if written for the proponent; a permit re-issued the moment a court strikes it down; an official who moves between the regulator and the industry; a concession or land release that benefits a connected party — each is a warning sign. So is the sudden reversal of a sympathetic official's position.

Who Is Supposed to Guard Against It

Indonesia has machinery against corruption and for transparency. The **anti-corruption commission** investigates graft, to which permitting and concessions are notoriously exposed. The **public-information law** lets you extract the record and expose the defect. The **administrative courts and the Supreme Court** can annul permits tainted by illegality. The **state audit body** can scrutinise the handling of public resources. And the **free press and investigative journalists** have repeatedly exposed fraudulent assessments and captured permits. These are the venues to which evidence of corruption should be directed.

How to Confront It — Safely

Confronting corruption demands even more care than ordinary campaigning. **Document rigorously and factually** — dates, decisions, documents, connections — and distinguish always between what you can prove and what you suspect. **Do not make public accusations you cannot substantiate**, both because they can be used to discredit you and because defamation and criminal cases have been used against Indonesian campaigners. **Route serious evidence to the proper bodies** — the anti-corruption commission, the courts, the audit body, and established investigative journalists — rather than confronting powerful interests alone. **Protect the people involved**, especially insiders and witnesses. And **lean on your allies**: environmental groups, legal-aid institutes, and journalists know how to handle such material and can shield individuals. Corruption is real in Indonesian permitting, and it can be confronted — the anti-corruption and transparency tools exist — but it must be confronted with evidence, through institutions, and with sober attention to the safety of everyone involved.

INTEGRATION & TIMELINE

The steps in this guide are not a menu from which to pick one; they are strands to be woven together. This section shows how they fit, and over what kind of time.

How the Strands Reinforce One Another

Documentation feeds everything: it is the basis of the objection, the administrative-court challenge, the adat claim, the press story, and the demand for enforcement. Organising gives the documentation weight and the campaign the endurance to outlast a re-issued permit. The legal routes — the administrative court, the Supreme Court, the Constitutional Court's adat ruling — turn the record into binding decisions. The press turns it into political and reputational cost that reaches officials and investors. And the follow-through turns a court win into real protection rather than a paper one. Each strand is stronger for the others: a court challenge amplified by the press and backed by an organised farming region is a different thing from a lonely lawsuit, and an adat claim reinforced by litigation and national attention is far harder to override — which is close to the combination that carried Kendeng. The reverse is also true: a lawsuit with no

organising behind it can be won on paper and lost on the ground, as a re-issued permit shows, and a protest with no legal case behind it can be dispersed without consequence. It is the weaving together — evidence, organisation, law, and publicity — that gives a community weight the other side cannot easily ignore.

A Realistic Timeline

Expect a long campaign, and one that may not end at the first victory. In the **first weeks**, pin down the project, send the information requests, gather the initial documentation, take part in any AMDAL involvement and object, and reach out to allies. In the **first few months**, build the coalition, obtain and analyse the AMDAL and the approval, produce the map overlay, and — if a permit is granted — prepare the administrative-court challenge within the time limit. Over the **following one to three years, and sometimes longer**, pursue the courts, advance any adat-forest recognition, sustain the press and public campaign, and — crucially — be ready to fight a re-issued permit and to enforce any win. The Kendeng struggle has run for many years and continued past a Supreme Court victory. Build for endurance, mark and celebrate the interim wins — an annulled permit, a protected catchment, a recognised adat forest, a documented violation acted on — and understand that in Indonesia the decisive struggle is often to make a win stick.

Holding Two Truths

Throughout, hold the two truths this guide began with. Indonesia gives organised communities genuine levers — an assessment system whose defects can void a permit, administrative courts that can annul it, a Constitutional Court that has affirmed adat forest, protections for water and farmland, a public-information law, a fierce press, and deep environmental and adat movements. And Indonesia's central weakness is that wins can be undone — permits re-issued, rules weakened, recognition delayed — and that resistance can carry real risk. A community that understands both will neither despair nor overpromise. It will use every lever, win where it can, be ready to fight on after a victory, protect its people, and keep the record — knowing that in Indonesia farmers once took a state company to the highest court and won.

FINAL ASSESSMENT

The honest bottom line for an Indonesian community facing a destructive project is this. **You are not powerless, and you are not without precedent — Indonesia is a place where farmers took a state-owned company to the Supreme Court and had its permit struck down.** The tools are real: an environmental-assessment system whose defects and hollow participation can void a permit, administrative courts that can annul an unlawful decision, a Constitutional Court that has recognised customary forest as belonging to adat communities, protections for water-catchments and farmland, a public-information law, and a free press and a deep environmental and adat movement.

But the tools work only when you can make them stick. Indonesia's characteristic problem is not the absence of law but the undoing of wins — permits re-issued to defeat a court, participation rights narrowed by the 2020 Omnibus Law, adat recognition delivered slowly, campaigners pressured. So temper hope with realism. Where the assessment is genuinely defective, or the land is adat forest or a protected catchment, and you can reach the courts and the press, your chances of stopping, stalling, or reshaping a project are real — Kendeng is the proof. Where the government and its investors back the project and officials will re-issue permits, an outright stop is hard, and the realistic wins are an annulled and re-fought permit, delay, protected water and land, safeguards, and exposure.

Whatever your situation, the method is the same: identify the project and its weakest link precisely — most often a defective assessment over water you depend on; document relentlessly, using the public-information law to extract the record; assert the participation and the rights the law gives you — the AMDAL involvement, the adat-forest rights, the water and farmland protections; organise a broad and enduring coalition built to outlast a re-issued permit; bring in the environmental groups and the legal-aid institutes; take a defective permit to the administrative court within the time limit; take the story to the press; and follow through to make the win stick. Combine the strands, protect your people, keep the record, and endure. The farmers of Kendeng, with cement on their feet and a hydrologist's report in their hands, showed Indonesia that a determined community with the law on its side can bring a state company down in the highest court. Their fight — years long, costly, and unfinished even after victory — is proof that in Indonesia a community that refuses to be worn down can force the state, the courts, and the companies to reckon with it. That is your reason to begin, and your reason to endure.